

PCU334768 LUCINDA TERRELL and Estate of JACK TERRELL, by and through its successor in interest et al vs. FERREIRA CONSTRUCTION COMPANY, INC. et al

County: tulare

Division: Civil Law and Motion

Department: 19

Hearing date: 2026-09-04

Motion: Plaintiff's Ex Parte Application for OST re: Motions to Compel Further Responses

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Re: LUCINDA TERRELL and Estate of JACK TERRELL, by and through its successor in interest et al vs. FERREIRA CONSTRUCTION COMPANY, INC. et al

Case No.: PCU334768

Date: September 4, 2026

Time: 8:30 A.M.

Dept. 19-The Honorable Russell P. Burke

Motion: Plaintiff's Ex Parte Application for OST re: Motions to Compel Further Responses

Tentative Ruling:

-To grant the ex parte application and hear Plaintiff's motions to compel further responses on September 22, 2026, 8:30 am, Dept. 19;

-To continue Defendant FPW's motions for protective orders to be heard at the same time on September 22, 2026, 8:30 am, Dept. 19;

-To order counsel to appear to set trial in this matter within 120 days of July 21, 2026; Counsel may appear in any manner.

Facts and Analysis

Plaintiff filed this matter May 8, 2026.

Plaintiff's motion for trial preference was set initially for July 21, 2028 and continued to July 28, 2026. On July 28, 2026, the motion for trial preference was granted. However, no trial date has been set.

On June 11, 2026, Plaintiffs served FPW with Special Interrogatories, Set One, and Requests for Production of Documents, Set One.

On July 8, 2026, FPW sent meet and confer correspondence in advance of seeking a protective order related to the scope of this discovery.

On July 27, 2026, FPW provided verified responses.

On July 28, 2026, Plaintiffs sent meet and confer correspondence as to the received responses.

On August 18, 2026, FPW provided verified amended responses.

On August 28, 2026, Plaintiffs filed these motions to compel further responses, setting them for October 13, 2026.

Plaintiffs note that a trial date within 120 days of July 21, 2026 hearing falls in November 2026 and therefore discovery cut off will occur in October 2026.

On September 2, 2026, Plaintiffs moved ex parte for an order shortening time to hear the discovery motions earlier than October 13, 2026.

California Rule of Court, rule 3.1202 provides the requirements for an ex parte application as to showing required:

“(c) Affirmative factual showing required

An applicant must make an affirmative factual showing in a declaration containing competent testimony based on personal knowledge of irreparable harm, immediate danger, or any other statutory basis for granting relief ex parte.”

Here, Plaintiffs have demonstrated sufficient good cause based upon the anticipated trial date, the anticipated discovery cut off, and the first available hearing for these motions.

Therefore, the Court grants the motion and set the motions to compel further on shortened time to September 22, 2026, 8:30 am, Dept. 19. Given the related issues presented in FPW's motions for protective orders currently set for September 8, 2026, the Court will continue FPW's motions for protective orders to be heard with the motions to compel further on September 22, 2026, at 8:30 am, in Dept. 19.

Finally, the Court notes that no trial date appears set. The Court will order counsel to appear at this hearing to set trial. Counsel may appear in any manner.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.